

25TRCV03146 25TRCV03146

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Case Number: 25TRCV03146 Hearing Date: August 19, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Wednesday, August 19, 2026

Calendar No.

PROCEEDINGS

Margherita

Massai Di Martino v. Songhui Sheryl Oh, et al.

25TRCV03146

1. Songhui Sheryl Oh's Demurrer to Complaint

TENTATIVE RULING

Songhui Sheryl Oh's Demurrer to Complaint is overruled.

Background

Plaintiff's Complaint was filed on September 12, 2025.

Plaintiff alleges the following facts. Plaintiff was involved in a motor collision with Defendant. Plaintiff alleges the following causes of action: 1.

Negligence Per Se; 2. Negligence; 3. NIED.

Meet and Confer

Defendant set forth a meet and confer declaration in sufficient compliance with CCP § 430.41. (Decl. Christopher K. Opfell.)

Demurrer

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The Court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.App.4th 634, 638.) Because a demurrer tests the legal sufficiency of a complaint, the plaintiff must show that the complaint alleges facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.) Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. (C.C.P., § 430.10(e); Zelig v. County of Los Angeles (2002) 27 Cal.App.4th 1112, 1126.)

Sufficient facts are the essential facts of the case "with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643-644.) "Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer." (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609-610.) Under Code Civil Procedure § 430.10(f), a demurrer may also be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's factual allegations are so confusing they do not sufficiently apprise a defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.)

Defendant purports to demur to the "claims/prayer for punitive damages in the Complaint." (Notice of Demurrer,

p. 1, lines 27-28). While the notice then proceeds to list a litany of various code sections, on page 3 of the demurrer, Defendant clarifies that the demurrer is being brought pursuant to CCP § 430.10(e).

Code Civ. Proc., §
430.10 states:

“The party against
whom a complaint or cross-complaint has been filed may object, by demurrer or
answer as provided in Section 430.30, to the pleading on any one or more of the
following grounds:

(a) The court has no
jurisdiction of the subject of the cause of action alleged in the pleading.

(b) The person who
filed the pleading does not have the legal capacity to sue.

(c) There is another
action pending between the same parties on the same cause of action.

(d) There is a defect
or misjoinder of parties.

(e) The pleading does
not state facts sufficient to constitute a cause of action.

(f) The pleading is
uncertain. As used in this subdivision, “uncertain” includes ambiguous and
unintelligible.

(g) In an action
founded upon a contract, it cannot be ascertained from the pleading whether the
contract is written, is oral, or is implied by conduct.

(h) No certificate
was filed as required by Section 411.35.”

The demurrer must be overruled
because punitive damages is not a cause of action. The proper procedural method

to challenge allegations and a prayer for punitive damages is with a motion to strike. "Since a demurrer does not lie to a part of a cause of action, petitioners' punitive damage allegations were not subject to real parties' demurrers. There is no cause of action for punitive damages. Punitive or exemplary damages are remedies available to a party who can plead and prove the facts and circumstances [. . .] Punitive damages are merely incident to a cause of action, and can never constitute the basis thereof. [...] The adequacy of the punitive damage allegations could, however, have been tested by motion to strike." *Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 163–164 (internal citations and quotations omitted).

Thus, the demurrer to the Complaint is overruled.

Defendant is ordered to file and serve an Answer within 10 days of this date.

Plaintiff is ordered to give notice of this ruling.